

or the exigent-circumstances exception to the warrant requirement — was not “clearly established” in November 1983. Rather, he argues that a competent officer might have concluded that the particular set of facts he faced did constitute “probable cause” and “exigent circumstances,” and that his own reasonable belief that the conduct engaged in was within the law suffices to establish immunity. But the factual predicate for Anderson’s argument is not found in the Creightons’ complaint, but rather in the affidavits that he has filed in support of his motion for summary judgment. Obviously, the respondents must be given an opportunity to have discovery to test the accuracy and completeness of the factual basis for the immunity claim. Neither this Court,¹⁴ nor petitioner,¹⁵ disagrees with this proposition. It is therefore pellucidly clear that the Court of Appeals was correct in its conclusion that the record before it did not support the summary judgment.

The Court’s decision today represents a departure from the view we expressed two years ago in *Mitchell v. Forsyth*, 472 U. S. 511 (1985). We held that petitioner was entitled to qualified immunity for authorizing an unconstitutional wiretap because it was not clearly established that warrantless domestic security wiretapping violated the Fourth Amendment. We added in a footnote:

“We do not intend to suggest that an official is always immune from liability or suit for a warrantless search merely because the warrant requirement has never explicitly been held to apply to a search conducted in identical circumstances. But in cases where there is a legitimate question whether an exception to the warrant requirement exists, it cannot be said that a warrantless search violates clearly established law.” *Id.*, at 535, n. 12.

¹⁴ See *ante*, at 646–647, n. 6.

¹⁵ See Brief for Petitioner 33–34, n. 18.